



Before you start

Remember



Know before you dig or place improvements.

When digging, always watch for underground cables, drains, power lines, and utilities.



Get required permits.

A right-of-way permit may be required for excavation, obstruction, or work within the public right-of-way.



Call before you dig.

Contact Gopher State One Call before you dig at 811 Or 1-800-252-1166.



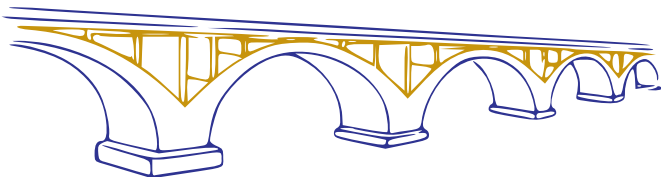
Expect maintenance needs.

If public infrastructure work is needed later, private improvements may need to be moved or removed at the property owners expense.



Know before you build.

The right-of-way may extend beyond the curb, sidewalk, or visible street edge. The City of Faribault does not locate or mark where public right-of-way begins or ends.



CITY OF FARIBAULT PUBLIC WORKS



Public Works Department
1200 Belview Trl.
Faribault, MN 55021



507-333-0361



Faribaultmn.gov/PublicWorks



CALL BEFORE YOU DIG.

Contact Gopher State One Call
At 811 or 1-800-252-1166

It's free. It's the law. It's the safe way.



Code References

Faribault City Code references include Chapter 25, Article VI; Sec. 25-116; Sec. 25-120; tree provisions in the public right-of-way Sec. 25-133; Sec. 26-2; and Sec. 26-3.

CITY OF FARIBAULT PUBLIC WORKS

PUBLIC RIGHT-OF-WAY

What property owners should know before digging, building, planting or placing improvements near the street.



What is the public right-of-way?

The public right-of-way (ROW) is the space reserved for public streets, sidewalks, utilities, and other community infrastructure. It often extends beyond the edge of the street into areas that may look like part of a private yard.

It may include:

- Roadways
- Sidewalks
- Boulevards
- Alleys, paths, or trails
- Underground utilities
- Drainage infrastructure
- Space needed for construction, repair, snow storage, and maintenance access



What is the public right-of-way used for?

The right-of-way gives the City and utility providers space to keep the community connected and working.



Getting around

Streets, sidewalks, trails and alleys.



Utilities & Drainage

Water, sewer, power, communications and stormwater.



Maintenance

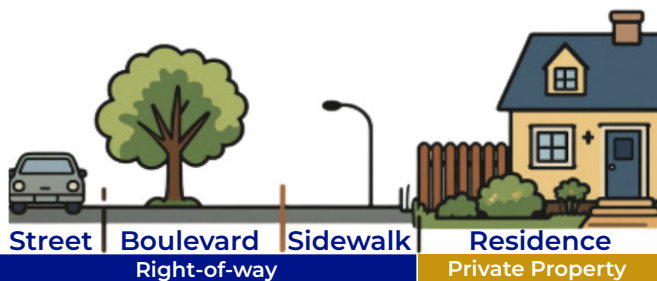
Snow storage, repairs and routine upkeep.

Future Improvements

Space for construction, street projects and infrastructure upgrades.

Where is the right-of-way?

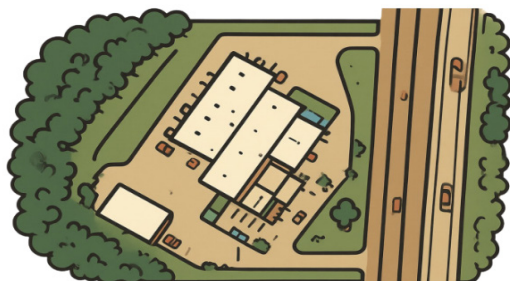
The location of the right-of-way varies by property.



In many neighborhoods, the Public Right-of-Way extends 10-15 feet or more beyond the curb.

Property owners are responsible for maintenance within the right-of-way.

This is a general estimate and should not be treated as a universal rule. The best way to determine the location is with a property survey.



Why does this matter?

Permanent or long-term private improvements in the right-of-way can increase public project costs and create problems if public infrastructure work is needed later, and may need to be moved or removed.

Examples include:



Fences



Retaining Walls



Sheds



Irrigation Systems



Landscaping Features



Private Concrete or Pavement



Mailboxes



Pools



Decks

Permits

The City of Faribault requires right-of-way permits for certain work within the public right-of-way, including obstruction, construction, or excavation. Except as provided in City Code, no person or public right-of-way user may obstruct or excavate the public right-of-way without first obtaining the appropriate permit. City Code Chapter 25 Article VI.

Common Permit-Related Questions



Am I digging or excavating in the public right-of-way?

Contact the City and Gopher State One Call before you dig.



Will the work block or affect sidewalks, streets, or utilities?

Contact the City before starting. Contact the City and+ Gopher State One Call before digging.



Is this simple planting or landscaping?

Small planting may not require the same type of permits as excavation, but may still be located at the property owner's risk if public work is needed later.

Trees and Boulevards

Tree Placement Rules

Trees in the public right-of-way must be placed in locations approved by the Faribault Public Works Department.

City Ordinance states:



At Intersections

Trees may not be placed within **20 feet** of an intersection, within **3 feet** of a curb line, or within **10 feet** of the edge of the traveled roadway.



No Curb line

Trees may not be placed within **10 feet** of the edge of the traveled roadway.



With Curb line

Trees may not be placed within **3 feet** of a curb line.

Property Owner Responsibilities

Maintain your sidewalk.

Property owners are responsible for keeping sidewalks next to their property in safe condition and making needed repairs. When sidewalk work is included as part of a City street reconstruction or improvement project, different City cost sharing policies may apply.

Sidewalk clearance matters.

City Code requires tree branches over sidewalks to be trimmed to leave a clear passageway of **8 feet**.

Know your responsibilities.

Do not plant or place trees in the right-of-way without approval. You are responsible for trees that are removed or damaged.

Maintain trees and boulevards.

Property owners are responsible for maintaining and trimming boulevard trees and mowing boulevard grass. City crews may also trim trees when needed to accommodate street maintenance.